

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201402708	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/20/2014 5:11 PM	Location of Incident: Opposite of 588 Richmond Road	18 Mo. SOL 9/20/2015	Precinct: 120		
Date/Time CV Reported Fri, 03/21/2014 11:06 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/21/2014 11:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Dalbero	08592	944479	120 PCT
2. POM Joseph Centner	29186	945478	120 PCT
3. SGT Brendan Heapes	01635	932779	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Bekim Kalicovic	00000	936834	PA UPTU
2. POM Gregory Howard	18811	941042	120 PCT
3. POM Christophe Eng	15563	944537	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brendan Heapes	Abuse: Sgt. Brendan Heapes authorized the stop of § 87(2)(b)	A . Substantiated
B . POM Joseph Dalbero	Abuse: PO Joseph Dalbero frisked § 87(2)(b)	B . Substantiated
C . POM Joseph Dalbero	Abuse: PO Joseph Dalbero searched § 87(2)(b)	C . Substantiated
D . POM Joseph Dalbero	Abuse: PO Joseph Dalbero searched the car in which § 87(2)(b) was an occupant.	D . Substantiated
E . POM Joseph Centner	Abuse: PO Joseph Centner searched the car in which § 87(2)(b) was an occupant.	E . Unsubstantiated
F . POM Joseph Dalbero	Abuse: PO Joseph Dalbero damaged § 87(2)(b)s property.	F . Unsubstantiated
G . POM Joseph Centner	Abuse: PO Joseph Centner damaged § 87(2)(b)s property.	G . Unsubstantiated
H . POM Joseph Dalbero	Force: PO Joseph Dalbero used physical force against § 87(2)(b)	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 20, 2014 at approximately 5:11 p.m., Sgt. Brian Heapes of the 120th Precinct directed PO Joseph Centner and PO Joseph Dalbero, also of the 120th Precinct, to stop a vehicle in which § 87(2)(b) was an occupant, opposite of 588 Richmond Road in Staten Island, NY (**Allegation A**). After § 87(2)(b) pulled over and exited his vehicle; and prior to any other officers arriving on the scene, PO Dalbero approached him and frisked and searched the pockets on the right side of his pants (**Allegations B and C**). Only PO Dalbero admitted to searching § 87(2)(b)'s vehicle subsequently, but § 87(2)(b) alleged that both he and PO Centner searched his vehicle (**Allegations D and E**). § 87(2)(b) also stated that officers removed “pieces of his dashboard” to search for concealed contraband, and that he was unable to piece the dashboard back together after his interaction with the officers (**Allegations F and G**). § 87(2)(b) also alleged that during the incident, PO Dalbero slapped him once in the face (**Allegation H**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- § 87(2)(b) filed a notice of claim with the City of New York seeking monetary redress of \$250,000 for injuries to his well-being, and damages for deprivation of liberty, physical, psychological pain and suffering, embarrassment, humiliation, punitive damages, and diverse general and special damages, including reasonable attorney fees and costs of an amount to be determined. A 50-H hearing which was scheduled for § 87(2)(b) was not held (Encl. G1 – G5; J1 – J2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has previously filed four complaints with the CCRB (Encl. B4).
 - § 87(2)(b)
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- Sgt. Brendan Heapes has been a member of the NYPD for eleven years, and has had two previous CCRB allegations of discourteous language and physical force involving two cases, which were withdrawn and exonerated, respectively. He has one other open case with the CCRB, involving an allegation of a stop (Encl. B3)
- PO Joseph Dalbero has been a member of the NYPD for seven years, and has eight allegations involving two other cases, none of which have been substantiated. § 87(2)(g)
- PO Joseph Centner has been a member of the NYPD for seven years, and has five allegations involving five other cases, none of which have been substantiated (Encl. B1).

Potential Issues

- § 87(2)(g)
- At the time of his interview at the CCRB, § 87(2)(b) stated that he did not have contact information for the individuals who gathered at the incident location during his interaction with officers. Although he stated that he would follow up with the information, he did not do so with the previous investigator, or with the undersigned investigator during a subsequent phone call on February 25, 2015. § 87(2)(b) stated that he did not have contact information for the individuals at the time of his interview at the CCRB, but that he would follow up with it. § 87(2)(b) did not provide the information to the former investigator; however, during a subsequent call back to the undersigned investigator on February 25, 2015, he stated that he still did not have the information.

Civilian Statement: Complainant/Victim

§ 87(2)(b) (Encl. C5 – C10)

- § 87(2)(b) § 87(2)(b) at the time of incident, is a white male § 87(2)(b) and is bald with brown eyes. § 87(2)(b)
- § 87(2)(b) pulled into the parking lot of a gas station (identified via investigation as Prime Auto Inc., 535 Vanderbilt Avenue in Staten Island) to avoid interacting with officers. § 87(2)(b) exited his vehicle, a silver Mercedes Benz, and briefly spoke with the gas station attendant. § 87(2)(b) got back in his vehicle and left the gas station, and continued southbound on Richmond Road.
- § 87(2)(b) was not issued any directives to pull over, nor did any officers signal with lights or sirens for him to do so. § 87(2)(b) exited his vehicle, locked it, and started to cross Richmond Road to the other side. As he started to cross the road, an officer, identified by the investigation as PO Dalbero, turned on his lights and sirens and pulled up behind § 87(2)(b)'s vehicle.
- An officer, identified by the investigation as PO Dalbero, put his hand inside § 87(2)(b)'s right pants pocket and removed § 87(2)(b)'s car keys. He did not go in any additional pockets or remove any other items. PO Dalbero and another officer, identified by the investigation as PO Centner, searched the vehicle from the driver's side door and the passenger's side door, as well as, underneath § 87(2)(b)'s seats, under the dashboard and under the ceiling visors. The officers did not recover anything from the vehicle.

- § 87(2)(b) began shouting so that people would gather to watch the interaction. According to him, approximately five to six people observed the incident, but § 87(2)(b) did not know their names or have any information about them.
- An officer, identified by the investigation as PO Dalbero, slapped § 87(2)(b) one time on his face and said, “What’re you making a scene for?”

NYPD Statements

Subject Officer: SGT. BRENDAN HEAPES (Encl. C11 – C14)

- Sgt. Heapes, who supervised the 120th Precinct SNEU set, was seated within an unmarked black Chevy Impala when he observed § 87(2)(b) walk in and out of a convenience store attached to a gas station while interacting with an unidentified individual. Sgt. Heapes, who observed § 87(2)(b) and the unidentified individual “touch hands” believed that § 87(2)(b) had engaged in a hand-to-hand drug transaction but that it was “hard to describe”. At the time of his interview, Sgt. Heapes agreed with his representative that he was “alerted to a possible hand-to-hand” because § 87(2)(b) is a “known drug dealer” who had been previously arrested for § 87(2)(b).
- Sgt. Heapes communicated his observations via point to point radio to PO Joseph Centner and PO Joseph Dalbero of the 120th Precinct, during which he also provided them with a description of § 87(2)(b)’s vehicle, and directed them to stop the vehicle.
- Sgt. Heapes continued on Targee Road towards Richmond Road, where PO Centner and PO Dalbero had already conducted the vehicle stop and § 87(2)(b) was standing at the rear of his car screaming obscenities.
- Sgt. Heapes also exited his vehicle and walked towards the rear of § 87(2)(b) car, where he noted a strong odor of marijuana emanating from the driver’s seat of § 87(2)(b)’s car, where the door was left open.
- Sgt. Heapes then walked over towards the driver seat and conducted a “visual observation” of the floor and seat areas, where no contraband was in plain view. No officer searched any part of the vehicle.
- Neither PO Dalbero nor PO Centner slapped § 87(2)(b).

Subject Officer: PO JOSEPH DALBERO (Encl. C20 – C25)

- When a vehicle passed by on his left, PO Dalbero noted that the occupant, § 87(2)(b) was not wearing a seatbelt. Det. Dalbero turned on the sirens with the intention of conducting a vehicle stop to issue a summons to § 87(2)(b) for failing to wear a seatbelt.
- As § 87(2)(b) walked towards the officers, PO Dalbero also observed a bulge on § 87(2)(b)’s front pocket, which he was unable to describe or identify.
- PO Dalbero stated that at the time of the vehicle stop, § 87(2)(b) exited his vehicle, left the driver’s side door open, and with clenched fists, approached him while touching his waistband area and front pockets several times. § 87(2)(b) did not place his hands inside his pockets, but stopped, leaned his upper body (shoulders) into his vehicle and appeared as though he was looking for something in the way he was reaching around the driver’s seat and floor in the front of his car. PO Dalbero did not issue any commands while § 87(2)(b) appeared to be searching his vehicle, nor did he observe him to take anything out of his car or place anything into his pockets. Because of these actions, PO Dalbero searched only around the front driver’s seat, and the floor by the front seats of

- § 87(2)(b) car, while § 87(2)(b) stood at the rear of his vehicle. No contraband was retrieved, and PO Centner did not conduct another search.
- PO Dalbero also frisked § 87(2)(b)'s waistband and front pockets, where he felt the bulge he had previously observed. A search of that pocket revealed that the bulge was caused by § 87(2)(b) cellphone.
 - PO Dalbero denied that he or any other officer slapped § 87(2)(b) face.
 - PO Dalbero issued § 87(2)(b) summons no. § 87(2)(b) for § 87(2)(b).

§ 87(2)(a) 160.50
§ 87(2)(b)

Witness Officer: PO JOSEPH CENTNER (Encl. C15 – C19)

- PO Centner received a radio run from Sgt. Brendan Heapes, of the 120th Precinct who was supervising the SNEU set. PO Centner could not recall the information provided in the radio run, but he recalled that Sgt. Heapes, who had observed the vehicle, described it as a white sedan before directing him and PO Dalbero to stop the vehicle.
- Both PO Centner and his partner, Det. Dalbero, exited their vehicle and instructed § 87(2)(b) to stop and produce identification.
- PO Centner, who could not recall asking § 87(2)(b) to get back into his car, stated that § 87(2)(b) was irate and uncooperative in providing identification despite being asked several times. PO Centner did not know if PO Dalbero intended on issuing § 87(2)(b) a summons upon stopping him, but that he asked for identification for the purpose of confirming his identity. PO Centner did not know how § 87(2)(b) identification was recovered.
- While standing at the rear of § 87(2)(b) car, PO Centner noted an odor of marijuana emanating from § 87(2)(b) car.
- PO Centner could not recall if any officer conducted a vehicle search; if § 87(2)(b) was frisked and searched; if any officer made physical contact with § 87(2)(b) body; or if back up was called.
- § 87(2)(b) was issued a summons for § 87(2)(b) by Det. Dalbero.

Findings and Recommendations

Explanation of Officer Identification

Under the Fellow Officer Rule, officers are entitled to act on information received from other officers, or via police radio, on the presumption that the information is true. People v. Landy, 59 N.Y.2d 369 (1983) (Encl. A1 – A6). It has been established that information received from a fellow officer is presumptively reliable, and that an officer can act accordingly on the basis of that information as long as the officers are in communication. People v. Ketcham, 93 N.Y.2d 416, 419-420 (1999) (Encl. A7 – A10). § 87(2)(g)

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Allegations Not Pleaded

§ 87(2)(g)
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§ 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: Sgt. Brendan Heapes authorized the stop of § 87(2)(b)

It is undisputed that Sgt. Heapes authorized the stop of § 87(2)(b) which ultimately occurred opposite of 588 Richmond Road. While seated in an unmarked black Chevy Impala, Sgt. Heapes observed § 87(2)(b) walk in and out of a convenience store attached to a gas station, identified by the investigation as Prime Auto Inc., in the vicinity of Targee Road and Richmond Road in Staten Island. § 87(2)(b) had walked in and out two times, while interacting with an unidentified individual that he “brushed against.” Sgt. Heapes believed that § 87(2)(b) had engaged in a hand-to-hand drug transaction, because he “is a known drug dealer” who had been previously arrested for possession of crack cocaine. Sgt. Heapes then communicated his observations via point to point radio to PO Joseph Centner and PO Joseph Dalbero of the 120th Precinct, during which he also provided them with a description of § 87(2)(b) vehicle, and directed them to stop the vehicle. Sgt. Heapes, who could not recall the driver of his RMP, continued on Targee Road towards Richmond Road, where PO Centner and PO Dalbero had already stopped § 87(2)(b).

PO Centner corroborated Sgt. Heapes’ statement in that he and his partner, PO Dalbero received a radio run from Sgt. Heapes who had observed the vehicle and described it as a white sedan before directing PO Centner to stop the vehicle. PO Centner, the driver of an unmarked black Chevy Impala, attempted to pull over § 87(2)(b) vehicle by turning on the sirens from approximately one block away. § 87(2)(b) then pulled over to the right side of the one-way street and began to cross over to the other side. § 87(2)(b) corroborated Sgt. Heapes’ and PO Centner’s statements in saying that he observed unmarked black vehicles in the vicinity of the gas station where he had spoken briefly with an attendant and made a phone call before leaving the gas station and getting into his vehicle to continue driving. When he observed lights and sirens behind him, he had attempted to pull over and then cross over to the other side of the street. According to PO Centner, he and PO Dalbero had instructed him to stop and produce identification.

A seizure of person is defined as a significant interruption of an individual’s liberty of movement. An officer may stop a person only if he reasonably suspects that the person committing, has committed, or is about to commit a crime. People v DeBour, 40 N.Y.2d 210 (1976) (Encl. A11 – A21). An exchange between two individuals, without an observed transfer of currency or an object resembling an illegal substance, is not sufficient to provide reasonable suspicion of a drug transaction. People v. Thompson, 791 N.Y.S 2d 872 (2004) (Encl. A22 – A23). The mere presence of a known drug offender in a high drug prone area does not amount to an indication of criminal activity and in the absence of any reasonably founded suspicion that criminal activity is underway, a stop is not permissible. People v. Jiminez, 589 N.Y.S.2d 478 (1992) (Encl. A24 – A25).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A be substantiated.**

Allegation B – Abuse of Authority: PO Dalbero frisked § 87(2)(b)

Allegation C – Abuse of Authority: PO Dalbero searched § 87(2)(b)

It is undisputed that PO Dalbero searched § 87(2)(b). Although PO Centner does not recall PO Dalbero conducting a frisk, and § 87(2)(b) does not allege being frisked, PO Dalbero admitted to doing so during his statement. § 87(2)(b) stated that PO Dalbero put his hand inside the right pockets of his pants and removed car keys. PO Dalbero did not go in any additional pockets or remove any other items. PO Dalbero stated that when § 87(2)(b) exited his vehicle upon pulling over, he approached PO Dalbero while touching his waistband area and front pockets several times without placing his hands inside his pockets. PO Dalbero also observed a bulge on § 87(2)(b) front pocket, which he was unable to describe or identify. PO Dalbero also frisked his waistband and front pockets, where he felt the bulge he had previously observed. A search of that pocket revealed that the bulge was caused by § 87(2)(b) cellphone. By all accounts, Sgt. Heapes was not present at the scene during this point and PO Centner did not describe the same behavior in his statement.

To frisk an individual, an officer must reasonably believe that the individual is armed. People v. DeBour, 40 N.Y.2d 210, 233 (1976). To search an individual, an officer must have probable cause to believe that the person has committed a crime, or possesses contraband. People v. DeBour, 40 N.Y.2d 210, 233 (1976) (Encl. A1 – A11).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations B and C be substantiated.**

Allegation D – Abuse of Authority: PO Dalbero searched the vehicle in which § 87(2)(b)
was an occupant.

It is undisputed that PO Dalbero searched the vehicle in which § 87(2)(b) was an occupant. § 87(2)(b) stated that after he was placed in handcuffs, and while he stood at the rear of his vehicle, PO Dalbero searched the front of the vehicle, at the driver's side and the front passenger's side.

PO Dalbero stated that while § 87(2)(b) stood at the rear of his vehicle, he searched only around the front driver's seat, and the floor by the front seats of § 87(2)(b) car because of § 87(2)(b)'s actions at the time of the vehicle stop. According to PO Dalbero, § 87(2)(b) started towards the officers upon exiting his vehicle, but then stopped, leaned his upper body (shoulders) into his vehicle and appeared as though he was looking for something in the way he was reaching around the driver's seat and floor in the front of his car. PO Dalbero did not issue any commands while § 87(2)(b) appeared to be searching his vehicle, nor did he observe him to take anything out of his car or place anything into his pockets. PO Centner did not

make any statement corroborating PO Dalbero's description of § 87(2)(b)'s behavior. By all accounts, Sgt. Heapes was not present at the time of the vehicle search.

The automobile exception authorizes officers to search a vehicle without a warrant if there is probable cause that evidence or contraband is inside of the vehicle. People v. Galak, 81 N.Y.2d 463 (1993) (Encl.A33 – A36). Absent probable cause, an officer may not search a vehicle once the suspects have been removed and frisked without incident, as any immediate threat to the officers' safety has been eliminated. People v. Torres, 74 N.Y.2d 224 (1989) (Encl. A26 – A32).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D be closed as substantiated.**

Allegation E – Abuse of Authority: PO Centner searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F – Abuse of Authority: PO Dalbero damaged § 87(2)(b)'s property.

Allegation G – Abuse of Authority: PO Centner damaged § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(b) stated that after he was placed in handcuffs, and while he stood at the rear of his vehicle, PO Centner also searched the front of the vehicle, at the driver's side and the front passenger's side. § 87(2)(b) also stated that officers removed "pieces of his dashboard" to search for concealed contraband underneath, and when he attempted to piece his dashboard together, he was unable to.

While standing at the rear of § 87(2)(b)'s vehicle, PO Centner noted an odor of marijuana emanating from the open front door at the driver's side of his vehicle. However, he did not recall the vehicle being searched. PO Dalbero did not discuss an odor of marijuana during the stop. Sgt. Heapes, who did not know if a vehicle search was conducted prior to his arrival, also noted an odor of marijuana while standing at the rear of § 87(2)(b)'s vehicle. However, his observation of the driver's seat, and the floor around the seat indicated that no contraband was in plain view.

§ 87(2)(g) it is recommended that **Allegations E, F and G be closed as unsubstantiated.**

Allegation H: Force - PO Dalbero used physical force against § 87(2)(b)

§ 87(2)(b) who admitted to shouting throughout the encounter, stated that while remaining handcuffed at the rear of his vehicle, PO Dalbero slapped him one time on his face and said, "What're you making a scene for?" By all accounts, Sgt. Heapes was not yet present and both PO Dalbero and PO Centner denied that § 87(2)(b) was slapped.

§ 87(2)(g) it is recommended that **Allegation F be closed as unsubstantiated.**

§ 87(2)(g), § 87(4-b)

§ 87(4-b) § 87(2)(g)

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Investigator: _____
Signature Print Date

Supervisor: _____
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Reviewer: _____
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